

Land Management Integrated Resources BPA Call

Issue Date: 3/26/2026

Due Date/Time: 4/9/2026

Contractor: BPA No.	12363N2 __A4 ____	Project Name	2026 Rio Grande Reforestation			
BPA RFQ or Call No.	12363N26Q0014	Location	Rio Grande National Forest (Colorado)			
Set-Aside	Small Business __x__ Unrestricted ____ This will only be sent out to the current BPA Award Holders as of Issue Date.					
Contractor:	Confirm business size by NAICS code below: Small ____ Large ____ Initial: ____					
	NAICS Code Exception if Applicable:					
Award Information	__X__ This is a <u>single award</u> call order. Contractor must provide pricing for all items listed under Box 20. ____ This is a <u>multi-award</u> call order. Contractor needs to only provide pricing for all items listed under the specific award(s) they are interested in.					
Contractor:		Issuing and Billing Office:				
UEI:						
Email:						
19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	NAICS Code (per Scope of Work)	21. ESTIMATED QUANTITY	22. UNIT OF MEASURE	23. UNIT PRICE	24. AMOUNT
1	Plant containerized conifer tree seedlings, Microsite scalping (8 inches by 8 inches), and Microsite shading with natural shade (all seedlings/all units)	115310	28,600	Tree	\$	\$
2	Walk-in access to Unit 6, 0.33 miles (additional cost per seedling for this unit; base pricing captured in line item 1)	115310	1,500	Tree	\$	\$
3	Walk-in access to Unit 17, 0.25 miles (additional cost per seedling for this unit; base pricing captured in line item 1)	115310	5,700	Tree	\$	\$
					\$	\$
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					\$	\$
					\$	\$
Remarks: All clauses and provisions in the base BPA award are applicable to call orders, however clauses and/or provisions in BPA Call Orders take precedence. See Attachments for additional terms and conditions. The Period of Performance for this Call Order is from the Date of Award through <u>09/30/2026</u> . Specific item due dates or deliverable due dates are mandatory, not arbitrary, and must be met accordingly, regardless of the final period of performance date.					Total Price: \$ _____	
Contractor: (Name, Signature, and Date)						
Date:						
Requested By: (Name and Signature)						

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Michael Tooley, Forest Silviculturist /s/ *Michael Tooley*

COR: Rachael Sanchez; Rachael.sanchez@usda.gov

Ordered By: (Name and Signature)

Contracting Officer

1. DESCRIPTION/STATEMENT OF WORK

Hand plant Engelmann spruce and Douglas-fir containerized seedlings on sites that were burned by wildfire in 2013. Seedlings will be planted on an average spacing of 14 foot by 14 foot and will utilize natural microsite shading. Microsite preparation will include scalping the ground to bare mineral soil prior to planting.

2. SPECIFICATIONS:

Planting will begin no later than September 23, 2026 in order to coincide with monsoon moisture patterns. The desired start date is 9/21/2026. Plant approximately 129 acres with Engelmann spruce and Douglas-fir container stock (1-0 plugs), cell size 112. The planting will be accomplished utilizing a hoedad (planting hoe) technique, on a 14 foot x 14 foot average spacing (see Detailed Information Chart). Microsite shading using natural stationary and moveable shade (if available within a 10-foot radius) will be required, as well as 8"x8" clearing and scalping for site preparation. The total trees to be planted are approximately 28,600 seedlings.

The Contractor shall furnish all labor, equipment, supervision, a planting inspector, workman's compensation, unemployment insurance, transportation, supplies (except those designated as Government-furnished) and incidentals, to perform all work necessary to plant seedlings in the area specified. The contract includes tree transportation from cooler to site, handling, planting, and micro-siting. All aspects of the work program shall be performed in an organized, systematic manner to assure services shall be performed over the entire unit. See chart on next page.

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Detailed Information Chart

Area Name	Number of Seedlings	Average Spacing/ Minimum Spacing (feet)	Walk In Distance (miles)	Estimated Seedlings/acre	On-Site Minimum Shade Requirements (inches)*	MIN Clearing/ Scalping (inches)
Table Mtn Units 4,5,16	3,000	14' x 14'/ 7'	<600 feet	222	8" width, 8" height; mandatory shading where available	8"x8"
Table Mtn Units 10-15	18,400	14' x 14'/ 7'	N/A	222	8" width, 8" height; mandatory shading where available	8"x8"
Table Mtn Unit 6	1,500	14' x 14'/ 7'	0.33 miles	222	8" width, 8" height; mandatory shading where available	8"x8"
Table Mtn Unit 17	5,700	14' x 14'/ 7'	0.25 miles	222	8" width, 8" height; mandatory shading where available	8"x8"
Approximate Total Acres**: 129						
*Stationary material first; transportable shade meeting requirements second; plant in the open last. See Attachment 3- Supplemental Contract Information, Section 4.7.3, Item 2.						
**Note: this call order is payable on a per-seedling basis; acres have no bearing on the rate of payment and are included here as cursory information only.						

Detailed Information Chart Specifications

Area Name	Unit #	Planting Method	Planting Stock*	Lot numbers by unit	Species	Plug Size	Acceptable Established Tree	Planting distance from live conifer & aspen	Unit Flagging/ Tag Color	Distance from Delivery Point to Access Point (mi)
Table Mtn	4	Hoedad	C	ES-09-245-110-18-01	ES	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	<600 feet
Table Mtn	5	Hoedad	C	ES-09-245-110-18-01	ES	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	<600 feet
Table Mtn	6	Hoedad	C	ES-09-245-110-18-01	ES	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	0.33 miles
Table Mtn	10	Hoedad	C	ES-09-245-110-18-01	ES	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	0
Table Mtn	11	Hoedad	C	ES-09-245-110-18-01	ES	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	0
Table Mtn	12	Hoedad	C	ES-09-245-110-18-01	ES	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	0
Table Mtn	13	Hoedad	C	DF-09-513-098-03	DF	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	0
Table Mtn	14	Hoedad	C	DF-13-247-084-03	DF	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	0
Table Mtn	15	Hoedad	C	ES-09-245-110-18-01	ES	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	0
Table Mtn	16	Hoedad	C	ES-09-245-110-18-01	ES	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	<600 feet
Table Mtn	17	Hoedad	C	ES-09-245-110-18-01	ES	112	All conifers; Aspen ≥4' tall	Outside of dripline only	Orange or Pink	0.25 miles
*For planting stock: B = Bareroot, C = Container, P2 = Plug + 2s										

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Description of Units

Area Name	Unit #	Acres (Approx.)	Average Slope (%)	Min-Max Elevations	Method & Year of Site Preparation	Remarks
Table Mtn	4	1.2	25%	11,040-11,080 feet ASL	Wildfire- 2013	Groundcover is sedge, grass, and grouse whortleberry.
Table Mtn	5	9.8	25%	11,120-11,240 feet ASL	Wildfire- 2013	Groundcover is sedge and grass. Unit is moderately rocky.
Table Mtn	6	6.7	25%	11,160-11,320 feet ASL	Wildfire- 2013	Groundcover is sedge and grouse whortleberry. Deadfall within the unit is moderate to heavy.
Table Mtn	10	22	25%	10,360-10,760 feet ASL	Wildfire- 2013	Groundcover is grouse whortleberry, sedge, and grass. Unit is moderately rocky.
Table Mtn	11	11.3	15%	10,560-10,760 feet ASL	Wildfire- 2013	Groundcover is sedge and grass. Unit is moderately rocky.
Table Mtn	12	28.1	20%	10,600-10,880 feet ASL	Wildfire- 2013	Groundcover is sedge, and grass.
Table Mtn	13	7.1	20%	10,480-10,560 feet ASL	Wildfire- 2013	Groundcover is sedge and grass.
Table Mtn	14	5.1	20%	10,440-10,560 feet ASL	Wildfire- 2013	Groundcover is sedge and grass.
Table Mtn	15	9.6	25%	11,120-11,280 feet ASL	Wildfire- 2013	Groundcover is sedge and grass.
Table Mtn	16	2.6	40%	10,960-11,080 feet ASL	Wildfire- 2013	Groundcover is sedge and grass. Unit is moderately rocky.
Table Mtn	17	25.9	25%	10,720-11,000 feet ASL	Wildfire- 2013	Groundcover is sedge and grass. Unit is moderately rocky.

Additional Information:

Off-road vehicles: Off-road vehicle use by the contractor, including ATV's and UTV's, is not allowed for this Call Order. The government may utilize UTV's as necessary for contract management. The contractor will be required to transport seedlings by hand from the delivery points to the planting units as necessary. Use of natural shade is required for planting spot selection. See Attachment 3- Supplemental Contract Information, Section 4.7.2 and Section 4.7.3, Item 2. **The minimum spacing specification listed in the Detail Information Chart above is permitted to capture all available microsite shading.**

Camping: Camping is permitted and suitable locations are present within 2 miles of the planting area.

Typical Weather Conditions/Access Constraints: Cold to warm temperatures, with afternoon thunderstorms likely. Planting areas are adjacent to or near four-wheel drive road access.

2.1 Key Personnel and Required Qualifications or Certifications

See Attachment 3- Supplemental Contract Information, Section 4.18. This call order requires an on-site representative and a dedicated inspector, both of whom shall be conversant in the English language.

2.2 Government Property FAR 52.245-1 GOVERNMENT PROPERTY (SEP 2021)

See Attachment 3- Supplemental Contract Information, Section 3.0.

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3. PROJECT LOCATION AND DESCRIPTION

The 2026 Rio Grande tree plant will take place in one location on the Divide Ranger District of the Rio Grande National Forest, located in Mineral County in south-central Colorado. Project area location is depicted on the vicinity and plant area maps. The planting area is located within T.39 N., R.1 E., sections 24,25,26,36 and T.39., R.2 E., sections 30,31; New Mexico Principle Meridian.

The Table Mountain planting units are located west-southwest of the community of South Fork. They can be accessed from Colorado State Highway 160, using National Forest System Road 410 (Big Meadows Road). See Attachment 1 for maps.

4. INSPECTION AND ACCEPTANCE:

The Performance Requirements Summary inspection and acceptance elements are described in the Attachment 2- Quality Assurance Surveillance Plan (QASP) and included as part of this contract.

4.1 FAR 52.246-4: INSPECTION OF SERVICES--FIXED-PRICE (AUG 1996)

- a. *Definition.* “Services”, as used in this clause, includes services performed, workmanship, and material furnished or utilized in the performance of services.
- b. The Contractor shall provide and maintain an inspection system acceptable to the Government covering the services under this contract. Complete records of all inspection work performed by the Contractor shall be maintained and made available to the Government during contract performance and for as long afterwards as the contract requires.
- c. The Government has the right to inspect and test all services called for by the contract, to the extent practicable at all times and places during the term of the contract. The Government shall perform inspections and tests in a manner that will not unduly delay the work.
- d. If the Government performs inspections or tests on the premises of the Contractor or a subcontractor, the Contractor shall furnish, and shall require subcontractors to furnish, at no increase in contract price, all reasonable facilities and assistance for the safe and convenient performance of these duties.
- e. If any of the services do not conform with contract requirements, the Government may require the Contractor to perform the services again in conformity with contract requirements, at no increase in contract amount. When the defects in services cannot be corrected by reperformance, the Government may—
 - 1) Require the Contractor to take necessary action to ensure that future performance conforms to contract requirements; and
 - 2) Reduce the contract price to reflect the reduced value of the services performed.
- f. If the Contractor fails to promptly perform the services again or to take the necessary action to ensure future performance in conformity with contract requirements, the Government may—
 - 1) By contract or otherwise, perform the services and charge to the Contractor any cost incurred by the Government that is directly related to the performance of such service; or
 - 2) Terminate the contract for default.

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4.2 CONTRACTOR INSPECTION PROCEDURES

(A) General Instructions

- 1) The Contractor shall conduct inspections of planting units and record the results using procedures described herein. Inspections shall be maintained concurrent with contract work. Completed inspection forms shall be made available to the Government within 24 hours of completion of each planting unit and will remain part of the permanent contract file.
- 2) By submission of inspection forms to the Government, the Contractor is considered to be certifying that the unit is satisfactorily completed and that the inspection forms reflect the work accomplished.
- 3) The Contractor shall submit legible inspection forms. Illegible and incomplete forms shall be returned to the Contractor for correction and re-submission.
- 4) In the event the Contractor falsifies inspection results, as determined by the Contracting Officer, the Government may declare the Contractor to be in default of the contract. Additionally, the Government may refer such falsifications to the US Attorney's Office for possible prosecution pursuant to 18 U.S.C. 1001 (Falsification of Government Documents) or 18 U.S.C. 287 (Fraud).

4.3 GOVERNMENT INSPECTION PROCEDURES – COMPLIANCE INSPECTION:

See Attachment 2 (QASP) for detailed government inspection procedures and payment calculations.

5. COMMENCEMENT PROSECUTION, AND COMPLETION OF WORK

The Contractor shall be required to (a) commence work under this contract within 7 calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than 9/30/2026.

6. POST AWARD CONFERENCE

A post award conference with the successful offeror is required. It will be scheduled within 10 days after the date of contract award. The conference will be held at virtually, followed by an on-site conference the first day of work.

7. EVALUATION CRITERIA:

Contractor must send a technical capability statement briefly explaining:

How they intend to complete this contract as far as time frame, personnel, and deliverables as well as explaining experience in tree planting work. Include relevant past performance information.

The Government will consider the relevance of past performance information obtained in relation to the scope of this procurement with respect to both similar efforts, and the length, scope, number, complexity, and diversity of contracts completed by the firm. Past performance, either positive or negative, which is considered by the Government to be more closely related to the scope of this effort will be given additional weight in the evaluation process.

Government evaluators may avail themselves of various federal, state, and local past performance databases. The Government may research offeror performance on any federal, state, local, and commercial contract performance of the offeror that is known to the Government, but not included on the submitted performance information. Additionally, the personal experience and evaluator knowledge of offeror performance may be utilized.

Quotes will be evaluated in two steps:

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- Step 1: Quotes will be reviewed initially under a Pass/Fail evaluation to determine if the Technical Capability meets requirements of the call order. Quotes must be signed. Those that do not meet the requirements will be marked unresponsive. Acceptable quotes will then be evaluated under Step 2.
- Step 2: Lowest Price with an acceptable quote will receive the award

8. LIST OF ATTACHMENTS

The following attachments are made a part of this solicitation and any resultant contract.

Title	Pages
ATT 1- Vicinity and Planting Area Maps	2
ATT 2- Quality Assurance Surveillance Plan	20
ATT 3- Supplemental Contract Information	14
ATT 4- Wage Determination	14
FAR Class Deviations and Updates (at end of this document)	

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March 2025 Class Deviation

This Call Order incorporates two FAR class deviations to ensure compliance with Executive Orders 14148, 14173, 14168, and 14208, issued since January 20, 2025. It also removes references to AGAR clauses and provisions that have been rescinded. These updates reflect recent policy changes and remove outdated requirements, as detailed below.

The following FAR provisions and clauses are hereby removed in their entirety from the LMIR BPA:

- 52.222-21 Prohibition of Segregated Facilities
- 52.222-26 Equal Opportunity
- 52.222-55 Minimum Wages for Contractor Workers Under Executive Order 14026¹

¹/This provision was removed to comply with the Executive Order 14236 titled "*Additional Rescissions of Harmful Executive Orders and Actions*," dated March 14, 2025.

The following FAR clauses now include deviations to align with recent Executive Orders:

- 52.212-3 Offeror Representations and Certifications—Commercial Products and Commercial Services (MAY 2024) (DEVIATION FEB 2025)
- 52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (JAN 2025) (DEVIATION FEB 2025)
- 52.223-1 Biobased Product Certification (MAY 2024) (DEVIATION FEB 2025)
- 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (MAY 2024) (DEVIATION FEB 2025)

The following references to AGAR Clauses and provisions are hereby removed to comply with AGAR Rule 2024-22463 (89 FR 81014):

- AGAR 452.211-74 Period of Performance (FEB 1988)²
- AGAR 452.215-73 Post Award Conference (NOV 1996)²
- AGAR 452.219-70 Size Standard and NAICS Code Information (SEP 2001)²
- AGAR 452.236-72 Use of Premises (NOV 1996)²
- AGAR 452.236-77 Emergency Response (NOV 1996)
- AGAR 452.236-78 Fire Suppression and Liability (MAY 2014)
- AGAR 452.237-74 Key Personnel (FEB 1988)²

²/AGAR clauses and provisions that were included in full text have been retained, with only the AGAR reference removed.

The following AGAR clauses is hereby included:

- AGAR 452.236-70 Emergency Response, Fire Suppression and Liability (NOV 2024)

All call orders will incorporate these changes by reference at award.

Disclaimer: System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove

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these representations in SAM.

In advancement of Section 2 of Executive Order 14208, the removal of requirements related to Executive Order 14057 eliminates all non-statutory sustainability requirements or preferences in purchases of food service wares, including paper straws. In addition to removing requirements related to Executive Order 14057, the attachment also reflects recent updates to Code of Federal Regulation citations for the U.S. Department of Agriculture's BioPreferred® Program, a statutory purchasing preference program. These class deviations will remain in effect until rescinded or incorporated into the FAR.

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As prescribed in AGAR 433.104-4 (a)(5)(ii), the following Notice for Filing Agency Protests shall be included in every solicitation.

NOTICE FOR FILING AGENCY PROTESTS United States Department of Agriculture (USDA) Ombudsman Program

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.

Page last modified on October 15, 2025